

**IN THE CIRCUIT COURT OF BENTON COUNTY, ARKANSAS
CIVIL DIVISION**

ARMON AMOS

PLAINTIFF

V. CASE NO. _____

**MIGUEL PEREZ
SALINAS AND SUNRISE
EXPRESS INC.**

DEFENDANTS

COMPLAINT

COMES NOW, the Plaintiff, Armon Amos, by and through Plaintiff's attorney at Dasplit Law Firm, PLLC, and for Plaintiff's cause of action against the Defendants, Miguel Perez Salinas and Sunrise Express Inc., alleges and states as follows:

PARTIES AND JURISDICTION

1. Plaintiff Armon Amos is, and at all times relevant to this action was, a resident of Rogers, Benton County, Arkansas.
2. Upon information and belief, Defendant Miguel Perez Salinas (hereinafter "Defendant Salinas") is an individual residing in Kansas. Defendant Salinas may be served at 516 Blunt Street, Downs, Kansas 67437, or wherever found.
3. Upon information and belief, Defendant Sunrise Express Inc. (hereinafter "Defendant Sunrise"), is a transportation company authorized to do business in the State of Arkansas via the United States Department of Transportation. Defendant Sunrise may be served with process through its registered agent Don Smith of Central Agent Service, Inc. at 510 N. Greenwood Avenue, Fort Smith, Arkansas 72917, or wherever found.

4. The automobile wreck giving rise to this cause of action occurred in Bentonville, Benton County, Arkansas.

5. This Court has Jurisdiction over the parties and the subject matter herein, and this Court is the proper venue for this cause of action.

FACTS COMMON TO ALL COUNTS

6. On or about December 28, 2023, at 9:05 P.M., Plaintiff was operating a 2018 Honda Civic traveling at or near the intersection of SE Walton Blvd and SW Regional Airport Blvd. in Bentonville, Arkansas.

7. At the same time and place, Defendant Salinas was operating an 18-wheeler truck owned by Defendant Sunrise and was also traveling at or near the intersection of SE Walton Blvd and SW Regional Airport Blvd. in Bentonville, Arkansas.

8. Defendant Salinas over-steered causing him to enter the outside right turn lane and caused a collision with Plaintiff's vehicle. Defendant Salinas struck the driver side of Plaintiff's vehicle.

9. At all times relevant to this Complaint, Defendant Salinas was acting within the scope of Defendant Salinas's agency and employment, and under the control of Defendant Sunrise.

COUNT I – NEGLIGENCE

10. Plaintiff incorporates each and every foregoing paragraph.

11. At the time of the collision, Defendant Salinas was negligent in the following respects:

- a. Failed to keep a proper lookout on the roadway;
- b. Failed to keep his vehicle under reasonable control;
- c. Failed to keep a safe distance from other vehicles on the road;

- d. Failed to yield the right of way to the Plaintiff's vehicle; and
- e. Generally failed to act as a reasonably careful and prudent person would act under the circumstances.

COUNT II – RESPONDEAT SUPERIOR

12. Plaintiff incorporates each and every foregoing paragraph.

13. Defendant Salinas was driving a vehicle owned by Defendant Sunrise at all times material hereto, Defendant Salinas, was operating the vehicle in the course and scope of employment with Defendant Sunrise. As such, Defendant Sunrise, is vicariously liable for Defendant Salinas's negligent acts and omissions under the doctrine of *respondeat superior*. Plaintiff further pleads Defendant Sunrise was negligent and/or negligent per se for one or more of the following reasons:

- a. Negligently entrusted a motor vehicle to an incompetent driver;
- b. Negligently hired and/or retained employees;
- c. Negligently trained and/or supervised employees;
- d. Violated applicable, local, state and federal laws and/or regulations;
- e. Other acts so deemed negligent.

DAMAGES

14. As a direct and proximate result of the Defendants' negligence Plaintiff suffered physical injuries throughout Plaintiff's body.

15. As a further direct and proximate result of the Defendants' negligence and of Plaintiff's injuries, Plaintiff suffered great pain, suffering, and mental anguish and will continue to suffer these conditions into the future.

16. As a further direct and proximate result of the Defendants' negligence and of Plaintiff's injuries, Plaintiff was placed under the care of physicians and has incurred medical expenses which amounts includes transportation expenses necessarily incurred in securing such care and is likely to incur medical expenses in the future.

17. As a result of the conduct of the Defendants, the Plaintiff should be compensated for the nature, extent, duration, and permanency of his injuries as set out herein.

WHEREFORE, PREMISES CONSIDERED, Plaintiff, Armon Amos, prays for judgment in an amount that does not exceed the minimum requirements for jurisdiction in federal court based on diversity; that Defendants be cited to appear and answer herein; that Plaintiff be awarded past and future medical expenses; that Plaintiff be compensated for Plaintiff's pain and suffering and mental anguish; that Plaintiff be awarded pre-judgment and post-judgment interest at the maximum legal rate provided by law; that Plaintiff recover from Defendants her costs herein expended, such costs to include a reasonable attorney's fees; and that Plaintiff receive any and all other relief to which Plaintiff may be justly entitled.

Respectfully submitted,

DASPIT LAW FIRM, PLLC

/s/Jennifer Reali

Jennifer Reali

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